

Court No. - 3

Case :- WRIT - C No. - 13924 of 2016

Petitioner :- Salig Ram Gupta

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Hausihla Prasad Mishra

Counsel for Respondent :- C.S.C., Suman Kumar Yadav

Hon'ble Krishna Murari,J.

Hon'ble Vinod Kumar Misra,J.

Certain very serious allegations have been made in this petition against the employees/engineers of Kanpur Electricity Supply Company.

Dr. S.K. Yadav, who has accepted notices on behalf of respondent nos. 2 and 3 may obtain instructions within a week. He shall also ensure that original record pertaining to the petitioner shall be produced before this Court along with some responsible officer to explain the same on the next date.

Put up as fresh on 11th April, 2016.

Order Date :- 30.3.2016

VKS

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Heard learned counsel for the petitioner and Sri S.K. Yadav appearing for respondent nos.2 & 3.

In compliance of the order dated 30.3.2016, learned counsel for the respondent-Corporation was required to produce original record pertaining to the electrical outstanding dues against the petitioner. In compliance of the said order, Sri Nikhil Verma, SDO, Vidyut Vitran Khand, Zarib Chowki, Kanpur has appeared before us along with original record, which has been produced.

From a perusal of original record goes to show that a provisional assessment was issued to the petitioner for a sum of Rs.1,22,696/-. However, we do not find that any date was fixed for personal hearing of the petitioner.

Petitioner has approached this Court challenging the proceedings initiated by the respondent-Corporation for recovery of its outstanding dues. Petitioner challenges the correctness of the bill for which recovery has been initiated.

Clause 6.5 (b) of the U.P. Electricity Supply Code, 2005 (for short the Code) provides for making a complaint before the competent authority if the consumer disputes the accuracy of the bill.

Since the disputed questions of fact are involved and the petitioner has a remedy, this writ petition stands disposed of with the liberty to the petitioner to make an appropriate complaint before the competent authority in accordance with the provisions of clause 6.5 (b) of the Code within a period of one week from today with the further direction to the authority concerned to consider and pass appropriate orders on the complaint so made in accordance with law within a further period of two weeks of the making of the complaint.

For a period of four weeks or till the disposal of the complaint, as directed aforesaid, whichever is earlier, recovery proceedings initiated against the petitioner shall remain in abeyance and shall abide by the orders to be

passed by the authority concerned.

It is further provided that after depositing the amount by the petitioner, the electricity connection shall be restored forthwith.

Order Date :- 12.4.2016

Hasnain